

# MASTER SERVICES AGREEMENT

This Master Services Agreement (this "Agreement") is entered into as of 1 February 2026 (the "Effective Date") by and between Meridian Cloud Infrastructure Pte. Ltd., a company incorporated in Singapore ("Vendor"), and Contoso Systems Ltd. ("Customer").

## 1. DEFINITIONS

1.1 "Services" means the managed cloud infrastructure and container orchestration platform made available by Vendor under this Agreement.

1.2 "Customer Data" means all data submitted to the Services by or on behalf of Customer.

1.3 "Term" means the Initial Term together with any Renewal Term.

## 2. TERM AND RENEWAL

2.1 Initial Term. This Agreement commences on the Effective Date and continues for an initial period of twenty-four (24) months (the "Initial Term").

2.2 Automatic Renewal. Upon expiry of the Initial Term, this Agreement shall automatically renew for successive twenty-four (24) month periods unless Customer provides written notice of non-renewal no less than one hundred twenty (120) days prior to the end of the then-current Term.

## 3. FEES AND PAYMENT

3.1 Fees. Customer shall pay an annual subscription fee of USD 216,000, invoiced annually in advance.

3.2 Payment Terms. Customer shall pay all invoices within thirty (30) days of the invoice date. Fees are non-refundable in all circumstances.

3.3 Fee Adjustment. Vendor may adjust the fees payable at each renewal by an amount determined by Vendor in its sole discretion, effective upon written notice to Customer.

3.4 Late Payment. Overdue amounts shall accrue interest at two percent (2%) per month, compounded monthly.

## 4. TERMINATION

4.1 Termination for Convenience. Vendor may terminate this Agreement at any time upon forty-five (45) days written notice to Customer. Customer shall have no right to terminate this Agreement for convenience during the Initial Term or any Renewal Term.

4.2 Effect of Termination. Upon any termination of this Agreement, all fees for the remainder of the then-current Term shall become immediately due and payable in full.

## 5. SERVICE LEVELS

5.1 Availability. Vendor shall use reasonable efforts to make the Services available not less than 99.5% of the time in each calendar month, excluding scheduled maintenance windows.

5.2 Service Credits. Where availability falls below 99.5% in a calendar month, Customer may claim a service credit of five percent (5%) of the monthly fee. Customer must submit any such claim in writing within fifteen (15) days of the end of the affected month, failing which the claim is irrevocably waived.

5.3 Support. Vendor shall use reasonable efforts to acknowledge priority-one incidents within twelve (12) business hours.

## **6. DATA PROTECTION**

6.1 Security. Vendor shall implement such technical and organisational measures as Vendor considers appropriate in its sole discretion.

6.2 Breach Notification. Vendor shall notify Customer of any confirmed unauthorised access to Customer Data within five (5) days of Vendor confirming such access.

6.3 Data Deletion. Following termination, Vendor shall delete Customer Data within one hundred eighty (180) days of receipt of Customer's written request.

6.4 Subprocessors. Vendor may appoint, replace or remove subprocessors in its sole discretion without notice to Customer.

## **7. AUDIT AND REPORTING**

7.1 Vendor Audit Rights. Vendor may audit Customer's use of the Services upon five (5) days notice to verify compliance with applicable usage limits. Customer shall provide all reasonable cooperation at Customer's sole cost and expense.

7.2 Customer Reporting. Customer shall deliver to Vendor a written utilisation report within twenty (20) days of the end of each calendar quarter.

7.3 Insurance. Customer shall maintain commercial general liability insurance of not less than USD 3,000,000 and shall furnish a certificate of insurance to Vendor annually on each anniversary of the Effective Date.

## **8. INTELLECTUAL PROPERTY**

8.1 Ownership. Vendor retains all right, title and interest in and to the Services. Customer retains all right, title and interest in Customer Data.

8.2 Feedback. Customer grants to Vendor a perpetual, irrevocable, worldwide, royalty-free and fully sublicensable licence to use, modify and commercialise any feedback or suggestions provided by Customer.

## **9. LIMITATION OF LIABILITY**

9.1 Cap. Subject to Section 9.2, the total aggregate liability of Vendor arising out of or in connection with this Agreement shall not exceed twenty-five thousand dollars (USD 25,000).

9.2 Excluded Claims. The limitation set out in Section 9.1 shall not apply to Customer's indemnification obligations under Section 10, or to Customer's payment obligations, in respect of which Customer's liability shall be unlimited.

9.3 Consequential Loss. Neither party shall be liable for any indirect, incidental, special or consequential loss.

## **10. INDEMNIFICATION**

10.1 Customer shall defend, indemnify and hold harmless Vendor and its affiliates from and against any and all claims arising out of or relating to Customer's use of the Services or Customer Data, including claims arising in whole or in part from Vendor's own negligence. This obligation shall survive termination of this Agreement indefinitely.

## **11. GENERAL**

11.1 Amendment. Vendor may modify the terms of this Agreement at any time in its sole discretion by publishing an updated version to Vendor's website. Customer's continued use of the Services following publication constitutes

acceptance of the modified terms.

11.2 Assignment. Customer shall not assign or transfer this Agreement, whether by operation of law, merger, or in connection with a change of control of Customer, without the prior written consent of Vendor, such consent to be granted or withheld in Vendor's sole discretion. Vendor may assign this Agreement freely and without notice.

11.3 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the Republic of Singapore.

11.4 Venue. The parties irrevocably submit to the exclusive jurisdiction of the courts of Singapore in respect of any dispute arising out of this Agreement.

11.5 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to its subject matter.

## 12. EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

MERIDIAN CLOUD INFRASTRUCTURE PTE. LTD.

By: \_\_\_\_\_ Name: A. Tanaka Title: Chief Revenue Officer

CONTOSO SYSTEMS LTD.

By: \_\_\_\_\_ Name: \_\_\_\_\_ Title: \_\_\_\_\_